



SUMMARY REPORT

Agenda Date: 4/16/2019

To: Board of Directors of the Sonoma County Agricultural Preservation and Open Space District
Department or Agency Name(s): Sonoma County Agricultural Preservation and Open Space District
Staff Name and Phone Number: Sheri Emerson, 565-7358
Vote Requirement: Majority
Supervisory District(s): Countywide

Title:

Second Amendment with Prunuske Chatham, Inc. to Property Maintenance, Repair and Management Agreement

Recommended Actions:

Authorize the General Manager of the Sonoma County Agricultural Preservation and Open Space District to execute a second amendment agreement for maintenance, repair and management work on District lands with Prunuske Chatham, Inc., adding an amount of \$150,000 to result in a contract total amount of \$350,000.

Executive Summary:

The Sonoma County Agricultural Preservation and Open Space District owns and manages approximately 4,200 acres of land. In accordance with the Board-approved Fee Lands Strategy, these properties and any attendant infrastructure require maintenance, management, and occasional repair to protect the conservation values for which the lands were protected.

To address a continuing need for invasive species management and fire fuels reduction work, the Sonoma County Agricultural Preservation and Open Space District proposes to amend the contract with Prunuske Chatham, Inc. to add an additional \$150,000 in funds, resulting in a total contract amount of \$350,000.

Discussion:

The Sonoma County Agricultural Preservation and Open Space District (Ag + Open Space) owns and manages approximately 4,200 acres of land. On November 20, 2012, the Board of Directors approved Ag + Open Space's Fee Land Strategy. This guidance document directs staff to manage Ag + Open Space lands in a manner that protects the organization's investment, public safety, and the conservation values of the properties, and further directs staff to transfer identified recreational lands to appropriate entities. Ag + Open Space-owned properties all require some level of management and maintenance, which is accomplished through organized volunteer workdays and contracts for land management and maintenance services. The protection of these resources requires activities ranging from construction and maintenance of fencing, vegetation management, debris removal, road maintenance, fuel load suppression, erosion control, illegal Cannabis operation removal, invasive species management, and protection and enhancement of sensitive resources.

Approximately 2,500 acres of Ag + Open Space-owned properties burned in the Tubbs and Nuns fires in October 2017, resulting in damage to natural resource values and built infrastructure. Immediately following the fires, it was necessary to initiate emergency time-sensitive maintenance, repair, and replacement work

using the existing As-Needed Repair and Maintenance Agreements. Ag + Open Space is seeking reimbursement for the cost of qualifying work through the Federal Emergency Management Administration's (FEMA) Public Assistance program, such as replacement of culverts and clearing of burned structure debris.

The fires created a need for enhanced control of various invasive plant species populations that require urgent action as spring plant seedlings emerge. In addition, the fires serve as a reminder of the necessity of additional proactive fuels reduction work. In addition to Ag + Open Space's annual mowing and year round grazing programs, land maintenance activities that address fire-related damage and that will prevent or minimize damage from future fires will continue for at least the next couple of years. This work in wildland areas to address invasive species and to reduce fuel loads is not reimbursable through FEMA's Public Assistance program.

On March 28, 2017, as part of a formal Request for Proposal award process, the Board authorized the General Manager of Ag + Open Space to execute nine three-year service agreements for maintenance, repair, and management work on Ag + Open Space-protected lands. The services described are not specific to any one project or property but applies to any Ag + Open Space-protected property. The original As-Needed Maintenance and Repair Service Agreement with Prunuske Chatham, Inc. was not-to-exceed \$100,000.

On April 17, 2018, the Board authorized the General Manager of Ag + Open Space to execute amendment agreements to eight of the original agreements, adding an aggregate \$450,000 for a total contract amount of \$1,050,000, and extending the terms of the agreements to March 31, 2021. The first amendment to the agreement with Prunuske Chatham, Inc. was for an amount not-to-exceed \$100,000, resulting in a total contract amount of \$200,000. To address a continuing need for invasive species management and fire fuels reduction work, Ag + Open Space proposes to amend the contract with Prunuske Chatham, Inc. to add an additional \$150,000 in funds, resulting in a total contract amount (including original agreement, first amendment, and second amendment) of \$350,000. The agreement term remains through March 31, 2021.

Prior Board Actions:

April 17, 2018: The Board of Directors approved amendments to eight service agreements for maintenance, repair, and management work on District lands.

March 28, 2017: The Board of Directors approved nine service agreements for maintenance, repair, and management work on District lands.

November 20, 2012: The Board of Directors approved the District's Fee Lands Strategy. (Board Action #33)

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses	75,000	50,000	25,000
Additional Appropriation Requested			
Total Expenditures	75,000	50,000	25,000
Funding Sources			

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General Fund/WA GF			
State/Federal			
Fees/Other	75,000	50,000	25,000
Use of Fund Balance			
Contingencies			
Total Sources	75,000	50,000	25,000

Narrative Explanation of Fiscal Impacts:

Ag + Open Space has adequate appropriations in FY18-19 to fund this contract increase and will include the commitment in future budgets.

Staffing Impacts:			
Position Title (Payroll)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

Attachments:

1. Second Amendment Agreement

Related Items "On File" with the Clerk of the Board:

1. As-Needed Repair and Maintenance Agreement
2. First Amendment Agreement